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Revision Date:
August 1, 2024

Background:
Deprivation of parental support or care is a separate and specific eligibility factor for CalWORKs. A child's deprivation is based on the status of their natural or adoptive parent(s). There is no CalWORKs eligibility unless deprivation requirements are met.

Purpose:
This section outlines the CalWORKs policies on deprivation requirements. The purpose of this revision is for sunset review and reformatting to current standards. There is no policy change.

Policy:
Definition of a Parent
A parent is defined as the natural or adoptive, married or unmarried, father or mother of a child. Deprivation for an adopted child is based on the status of the adoptive parent and not of the natural parents. In a one-parent adoption, deprivation is based on the absence of the second adopted parent.

In cases where there is a question as to parentage concerning either parent, the matter will be referred to the Local Child Support Agency (LCSA) for resolution.

Basis of Deprivation
A child is considered deprived of parental support and care if:
- Either parent is deceased.
- Either parent is physically or mentally incapacitated.
- The principal earner is unemployed.
- Either parent is continually absent from the home in which the child is living.

When the child is deprived of parental support or care for more than one reason, eligibility will be established on any basis of deprivation. However, the basis of deprivation due to unemployment should be used whenever possible because this permits federal participation.

The basis for deprivation is to be determined:
- At the time of application.
- When processing Semi-Annual Reporting (SAR) or once per payment period.

Verification of Deprivation
CalWORKs is not to be authorized until the requirements which establish deprivation are met and verified. Verification of deprivation is not required to approve an Immediate Need request.

Termination of Deprivation
When a basis for deprivation ends, and the family remains in need, determine if any other basis for deprivation exists.

For households with SAR reporting responsibilities:

- Do not to take negative action based on changes in deprivation when a basis for deprivation ends mid-period.
- Any change in deprivation is to be reported on form SAR 7 – *Eligibility Status Report*.
- Changes in eligibility that result from the change in deprivation will be effective the first day of the next SAR payment period.

If a SAR household reports a change mid-period and staff determined that the change reported qualifies the Assistance Unit (AU) for an exempt Maximum Aid Payment (MAP), the change from non-exempt to exempt MAP is to occur the month following the report. For example, an AU of two consisting of a timed-out parent and two children. The AU is aided based on absent parent deprivation. The parent makes a voluntary mid-period report in October that they have been approved for Supplemental Security Income (SSI). Staff will change the basis of deprivation for this AU to incapacitated and allow the exempt MAP amount effective November 1.

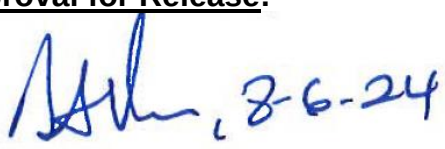
For Annual Reporting/Child Only (AR/CO) households:

- No action will be taken based on changes in deprivation when a basis for deprivation ends mid-period, unless the change in deprivation is due to a change in the household composition.
- Any change in deprivation is to be reported on the SAWS 2 Plus.
- Any change in eligibility that results from a change in deprivation, except a change in the household composition, will be effective the first day of the next AR/CO payment period.
- Timely and adequate notice is required when a change in deprivation due to a change in the household composition will result in a decrease or discontinuance of CalWORKs.

References:
Manual of Policies and Procedures (MPP) 41-401, 41-403, 41-405
All County Letter (ACL) 03-18, 12-25
All County Information Notices (ACIN) I-58-13

Sunset Date:
This policy will be reviewed for continuance by August 31, 2027.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services